

24CMCV00311 24CMCV00311

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-08-05

Motion: DEFENDANT MATSON LOGISTICS, INC.'S DEMURRER

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Case Number: 24CMCV00311 Hearing Date: August 5, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

JEFF WALDEN,

Plaintiff,

vs.

MARAVILLAS

TRANSPORTATION LLC, et al.,

Defendants.

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CASE NO: 24CMCV00311

[TENTATIVE]

ORDER RE: DEFENDANT MATSON LOGISTICS, INC.'S DEMURRER

Dept.

A

DATE:

August 5, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 03/05/2024

TRIAL:

01/06/2027

MOVING

PARTY: Defendant Matson
Logistics, Inc.

RESPONDING

PARTY: Plaintiff Jeff Walden

1. Background

This is a motor vehicle negligence action.

Plaintiff Jeff Walden ("Walden") alleges that on March 11, 2022, defendants Maravillas Transportation LLC; Horizon Lines, LLC; Matson Logistics, Inc. ; Direct ChassisLink, Inc.; The Pasha Group dba Pasha Hawaii Transport Lines LLC; and Arturo Leal negligently owned, operated, maintained, drove, controlled, and entrusted their vehicle so as to cause Walden personal injury and property damage.

2. Discussion

Defendant

Matson Logistics, Inc. ("Matson") demurs to the complaint. Matson contends that the complaint fails to plead facts indicating how Matson is related to the underlying incident. No parties have opposed this demurrer.

A demurrer for

sufficiency tests whether the complaint or cross-complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747 (Hahn).) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (Hahn, supra, 147 Cal.App.4th at p. 747.)

The ultimate

facts alleged in the complaint or cross-complaint must be deemed true, as well as all facts that may be implied or inferred from those expressly alleged. (Marshall v. Gibson, Dunn & Crutcher (1995) 37 Cal.App.4th 1397, 1403; see also Shields v. County of San Diego (1984) 155 Cal.App.3d 103, 133 [stating, “[o]n demurrer, pleadings are read liberally and allegations contained therein are assumed to be true.”]) “The court does not, however, assume the truth of contentions, deductions or conclusions of law. [Citation.]” (Durell v. Sharp Healthcare (2010) 183 Cal.App.4th 1350, 1358.)

Matson

contends that the complaint fails to describe the vehicle involved in the incident and fails to describe how Matson owned, possessed, or controlled the vehicle. However, this level of specificity is not required at the demurrer stage. Walden alleges in the complaint that Matson owned or entrusted the vehicle and employed the person operating the vehicle at the time of the incident, and that the vehicle was negligently owned, operated, maintained, controlled, and entrusted so as to injure Watson. Walden also alleges the date and location of the incident. This is sufficient to appraise Matson of the issues at hand. The complaint is therefore adequately pled. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.)

3. Conclusion

Based on the foregoing, the court OVERRULES Defendant Matson Logistics, Inc.’s demurrer.

Matson is ordered to give notice.

IT IS SO ORDERED.

DATED: August 5, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court